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File No.: EXP202205795

## RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

## BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on May 16, 2022. The reasons for the complaint are as follows:

The complainant states that on May 14, 2022, an anonymous individual used her personal data, including her name, image, and phone number, to advertise a sexual massage service on the website milanuncios.com (Indicates the ad reference number \*\*\*REFERENCIA.1). As a result of this unlawful processing of her data, the complainant states that she has received numerous calls and WhatsApp messages inquiring about these services.

She states that, after complaining to the person responsible for the aforementioned website, the ad was removed. However, one hour later, the same ad was republished with a different reference number (\*\*\*REFERENCIA.2). Following this new ad, she again received numerous calls and WhatsApp messages, causing her an anxiety attack.

She provides a screenshot of this, showing "\*\*\*\*ANUNCIO.1", the name XXXX, and an image of a girl. She also provides a screenshot of a WhatsApp conversation in which a third party asks if she does all types of massages, to which the complainant responds that it is a false ad, ending the conversation with the third party's apologies.

SECOND: On June 22, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

THIRD: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

Date on which the claimed facts occurred: May 14 and 15, 2022

- During the present actions, B.B.B. with NIF \*\*\*\*NIF.1 was investigated.

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- Information was requested from the company ADEVINTIA SPAIN, S.L.U. (hereinafter ADEVINTA), the owner of the website where the ad was published, regarding the identifying data of the user who requested the publication of ads with reference numbers \*\*\*REFERENCIA.1 and \*\*\*REFERENCIA.2 on the portal milanuncios.com, indicating that they were as follows:

- Name: XXXX

- Email: \*\*\*EMAIL.1

- Phone: \*\*\*TELÉFONO.1

Adevinta Spain proceeded to gather all possible information related to the ads, including those that had been removed from the Milanuncios.com platform, in which the personal data of the complainant had been stated. Thus, it provides a screenshot of this information (Image No. 3), from which it is inferred:

- That 3 ads were published, two of them on May 14, 2022, and another on May 15, 2022, from the IP address \*\*\*IP.1, and include the name, email address, and phone number indicated in the previous paragraph.

ADEVINTA indicates that the first ad, published on May 14, 2022, was removed the same day by the same user who published it and republished by the same user that same day.

One of the ads published on May 14, 2022, was removed by ADEVINTA on May 15, 2022, after receiving an email from the complainant requesting its cancellation.

The ad published on May 15, 2022, ADEVINTA indicates was removed on May 16, 2022, after receiving a new email from the complainant requesting its cancellation.

ADEVINTA claims that it has implemented necessary measures so that the complainant's phone number cannot be reintroduced in future ads published on the Milanuncios.com portal, unless she herself authorizes it.

In response to the request for information about the IP address used to connect to the milanuncios.com server for uploading the ads of those references, as well as the dates and times of connection, ADEVINTA indicates, in accordance with the evidence provided (Image No. 3), that it is the IP address \*\*\*IP.1.

Regarding the dates and times of connection when the indicated ads were uploaded, it indicates the following:

- Ad with reference \*\*\*REFERENCIA.1: May 14, 2022, at 08:39:28h.
- Ad with reference \*\*\*REFERENCIA.2: May 15, 2022, at 08:22:03h.
- At the request of the Data Inspection Sub-Directorate of this Agency to the operator assigned the IP addresses from which the ads were published (ORANGE) regarding the identifying data of the user who had been assigned those IP addresses at the same date and time they were uploaded to the milanuncios.com portal, the operator has provided the identification of this user, being B.B.B., with NIF No. \*\*\*NIF.1 and residing at Calle \*\*\*DIRECCIÓN.1.

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FOURTH: On June 16, 2022, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

The initiation agreement was electronically notified on 06/16/2022, as evidenced by the certificate from the Single Enabled Electronic Address Service (DEHÚ).

FIFTH: The aforementioned initiation agreement was notified in accordance with the provisions established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations were received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the opening agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed.

Therefore, considering that the respondent has not submitted allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following facts as proven in this procedure,

#### PROVEN FACTS

FIRST: Publication of the following data of the complainant on the website milanuncios.com without their consent: image, first name, and mobile phone number.

These data were published in the following advertisements, referred to as "\*\*\*\*AD.1":

- Advertisement with reference \*\*\*REFERENCE.1: 05/14/2022, at 08:39:28h.
- Advertisement with reference \*\*\*REFERENCE.2: 05/15/2022, at 08:22:03h.

SECOND: The IP address connecting to the server of milanuncios.com for the upload of these advertisements is the IP address \*\*\*IP.1, which, on the dates and times of the advertisement uploads, corresponds to the user B.B.B., with N.I.F. nº B.B.B..

## LEGAL GROUNDS

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I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

### Preliminary Issues

Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 11, states that:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination, or otherwise making available, alignment, combination, restriction, erasure, or destruction;

"11) 'consent of the data subject': any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or by a clear affirmative action, signify agreement to the processing of personal data relating to them."

In light of the above, the physical image of a person, their name, and their mobile phone number, according to Article 4.1 of the GDPR, are personal data and, therefore, their protection is the subject of this Regulation.

Moreover, their use for identity theft (impersonating another person) and their publication on the internet constitutes the processing of personal data in accordance with the aforementioned Article 4.2 of the GDPR.

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III

### Violation of Article 6.1 of the GDPR

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful:

"1. The processing shall be lawful only if it meets at least one of the following conditions:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person.
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Furthermore, Recital 40 of the aforementioned GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation applies, including the necessity of complying with a legal obligation to which the data controller is subject or the necessity of performing a contract to which the data subject is party or for the purpose of taking steps at the request of the data subject prior to entering into a contract.”

In the present case, there is evidence of the unlawfulness of the data processing carried out by the investigated party, as they proceeded to publish two advertisements on the website milanuncios.com impersonating the claimant, containing personal data of the claimant (image, name, and mobile number), without any of the bases for legitimacy provided for in the aforementioned article being established, as there is no evidence of the claimant's consent nor the concurrence of any of the other circumstances that allow for the processing of personal data, which constitutes a violation of Article 6.1 of the GDPR.

Therefore, in light of the facts presented, it is considered appropriate to impose a sanction on the investigated party for the violation of Article 6.1 of the GDPR.

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IV

Classification of the violation of Article 6.1 of the GDPR

The violation of Article 6.1 of the GDPR constitutes the commission of the violations classified in Article 83.5 of the GDPR, which under the heading “General conditions for the imposition of administrative fines” states:

“Violations of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to up to 4% of the total annual global turnover of the preceding financial year, opting for the higher amount:

- b) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

In this regard, the LOPDGDD, in its Article 71 “Violations” establishes that “Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute violations.”

For the purposes of the limitation period, Article 72 “Very serious violations” of the LOPDGDD indicates:

- “1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall be subject to a three-year limitation period: violations that

constitute a substantial infringement of the articles mentioned therein and, in particular, the following:  
a) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.”

V

Sanction for the violation of Article 6.1 of the GDPR

In accordance with the available evidence, it is appropriate to grade the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR and paragraph 2 of Article 76

“Sanctions and corrective measures” of the LOPDGDD:

As aggravating factors:

- Article 83.2.a) GDPR. Nature, gravity, and duration of the violation, taking into account the nature, scope, or purpose of the processing operation in question as well as the level of damage and harm suffered.

In the present case, the data processing was carried out with the intention of causing harm to the claimant, who had to endure receiving messages and calls.

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requesting a service that she had not advertised, causing her an unwanted and uncomfortable situation.

Article 83.2.b) GDPR. Intent or negligence in the infringement: there is a clear intent in the publication of the advertisement on an internet portal, impersonating the identity of the complainant, which was done on two occasions, as after the advertisement was removed by the company that owns the portal due to the complainant's complaint, the investigated party republished the same advertisement with the same characteristics.

The balance of the circumstances contemplated in Article 83.2 of the GDPR and Article 76.2 of the LOPDGDD, regarding the infringement committed by violating what is established in Article 5.1 f) of the GDPR, allows for the imposition of a fine of €10,000 (ten thousand euros).

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF \*\*\*NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €10,000 (TEN THOUSAND euros).

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed fine once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN: ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public

once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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